

2:00 PM

LINE: 4

23-CIV-05077

DAWN CALVERT VS. NEWELL'S COCKTAIL LOUNGE

**DAWN CALVERT
NEWELL'S COCKTAIL LOUNGE**

**PRO SE
WILLIAM S. KRONENBERG**

**PLAINTIFF DAWN CALVERT'S MOTION TO QUASH OR IN THE ALTERNATIVE, TO MODIFY DEFENDANT'S SUBPOENAS
FOR PRODUCTIONS OF RECORDS**

TENTATIVE RULING:

Parties are to refer to Court's July 16th, 2026 tentative ruling.

2:00 PM

LINE: 5

24-CIV-06313

LEONOR GOMEZ ET AL VS SAN MATEO COUNTY TRANSIT DISTRICT (SAMTRANS")

**LEONOR GOMEZ, GUARDIAN AD LITEM
RAMON MUNIZ**

**MARK A SIGALA
NATALIE GARCIA LASHINSKY**

PETITIONER LEONOR GOMEZ, GUARDIAN AD LITEM’S MOTION FOR TRIAL SETTING PREFERENCE AND FOR TRIAL SETTING

TENTATIVE RULING:

For the reasons stated below, Plaintiff Leonor Gomez’s Motion for Trial Setting Preference and for Trial Setting (the “Motion”) is **GRANTED**.

BACKGROUND

According to the allegations, on or about August 4, 2023, Plaintiff Leonor Gomez (“Plaintiff”) and her adult disabled daughter, Plaintiff Aurelia Gomez, were passengers on a bus operated by Defendant San Mateo County Transit District (“SamTrans”) and/or Defendant TransDev Services, Inc. Defendant Ramon Muniz was operating the bus when it allegedly traveled over a speed bump at excessive speed, causing injuries to Plaintiffs. Aurelia Gomez allegedly witnessed her mother sustain serious injuries and claims resulting emotional distress.

Plaintiff now seeks trial preference under Code of Civil Procedure section 36, subdivision (a), and an order setting trial within 120 days.

GOVERNING LAW

Code of Civil Procedure section 36, subdivision (a), provides:

A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.

(Code Civ. Proc., § 36, subd. (a).)